

**CHAPTER cxviii.**

An Act to confirm a Provisional Order under the Burgh Police (Scotland) Act 1892 relating to the Burgh of Inverness. A.D. 1905.
[4th August 1905.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Burgh Police (Scotland) Act 1892 and it is requisite that the said Order should be confirmed by Parliament: 55 & 56 Vict.
c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Inverness Gas and Water Order Confirmation Act 1905. Short title.

A.D. 1905.

S C H E D U L E.

INVERNESS GAS AND WATER.

Provisional Order to confer additional borrowing powers for the supply of Gas and Water upon the Town Council of Inverness and for other purposes.

WHEREAS by the Burgh Police (Scotland) Act 1892 it is (inter alia) provided (section 45) that whenever it shall appear to the commissioners of any burgh to which that Act applies that they require additional powers for the better carrying out of the purposes thereof and specially powers relating to the supply of gas or water or to roads or streets or to the drainage or sewers or the utilisation of sewage in addition to the powers conferred by the Public Health Acts or for the repeal or amendment of any local Act of Parliament relating to such subjects or for the adjustment of the provisions of the said Act or for the other purposes therein mentioned they may apply to the Secretary for Scotland for a Provisional Order and that by section 46 of the said Act the Secretary for Scotland may after such inquiry as he may direct issue a Provisional Order either in accordance with the prayer of the application or with such modifications or alterations as may appear to him requisite but that no Provisional Order shall be of any validity unless the same has been confirmed by Parliament :

And whereas the said Burgh Police (Scotland) Act 1892 is in force within the burgh of Inverness (herein-after referred to as "the burgh") :

And whereas by the Inverness Gas and Water Act 1875 (herein-after called "the Act of 1875") the provost magistrates and councillors of the burgh as then commissioners of police of the burgh (herein-after referred to as "the Commissioners") acquired the undertaking of the Inverness Gas and Water Company and the right to make and maintain waterworks and gasworks and to supply gas and water within the burghs and places adjacent :

And whereas the Commissioners were authorised to borrow for the purposes of the waterworks undertaking any sum not exceeding forty-one thousand pounds on the security of the rates assessments and charges and by the said Act authorised and for the purposes of the gas undertaking any sum not exceeding forty thousand pounds on the security of the gasworks undertaking and the rents charges and revenues to arise from the supply of gas and the sale of residual products :

And whereas the cost of such purchase and of carrying into execution the Act of 1875 had considerably exceeded the amount estimated at the time of the application for the Act of 1875 and the moneys which they were authorised to borrow by that Act and had borrowed for the purposes of the said water and gas supply and of that Act were found to be insufficient to defray the cost thereof :

And whereas by the General Police and Improvement (Scotland) Act (1862) Order Confirmation (Inverness) Act 1879 (herein-after called "the Order of 1879") the sum authorised to be borrowed by the Commissioners

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for the purposes of the said waterworks undertaking was increased to the sum of fifty six thousand pounds and for the purposes of the gasworks undertaking to the sum of forty-five thousand pounds :

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And whereas by the General Police and Improvement (Scotland) Act (1862) Order Confirmation (Inverness) Act 1892 (herein-after called "the Order of 1892") the sum authorised to be borrowed by the Commissioners for the purposes of the said waterworks undertaking was further increased to the sum of sixty-six thousand pounds and for the purposes of the gasworks undertaking to the sum of fifty-seven thousand pounds :

And whereas the provost magistrates and councillors of the said burgh (herein-after referred to as "the Town Council") are under the Town Councils (Scotland) Act 1900 now in the room and place of the Commissioners :

And whereas the Town Council have expended in the waterworks undertaking sixty-four thousand eight hundred and thirty-four pounds of the authorised capital of sixty-six thousand pounds and in the gasworks undertaking the full amount of fifty-seven thousand pounds authorised to be borrowed for gasworks purposes :

And whereas the Town Council have presented a petition to His Majesty's Secretary for Scotland setting forth that in consequence of the extension of the burgh boundaries and the consequent extension of the gasworks and mains and the execution of certain other works and with regard to the waterworks undertaking the laying down new water mains and pipes and the doubling of the main from the reservoir to the town and praying that they should be authorised to borrow for the purposes of the said gasworks undertaking an additional sum not exceeding fifteen thousand pounds and for the purposes of the said waterworks undertaking an additional sum not exceeding ten thousand pounds :

And whereas it has been represented in the said petition that it is expedient that the Town Council should be authorised to borrow the additional sum of fifteen thousand pounds for the purposes of the gasworks undertaking on the security of the rents charges and revenues to arise from the supply of gas and the sale of residual products and the additional sum of ten thousand pounds for the purposes of the waterworks undertaking on the security of the water rates assessments and charges by the Act of 1875 authorised and that the Act of 1875 as amended by the Orders of 1879 and 1892 should be amended accordingly :

And whereas after due inquiry I have resolved to issue a Provisional Order granting authority to borrow the said additional sums of fifteen thousand pounds and ten thousand pounds in the terms herein-after expressed :

Now therefore in pursuance of the powers vested in me by the Burgh Police (Scotland) Act 1892 I as Secretary for Scotland do by this Provisional Order direct as follows :—

1. This Order may be cited as the Inverness Gas and Water Order 1903 The Act of 1875 and the Acts confirming the Orders of 1879 and 1892 and this Order may be collectively cited as the Inverness Gas and Water Acts 1875 to 1903.

Citation of
Order and
Acts.

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Power to
borrow.

2. From and after the time of the passing of the Act confirming this Order the 74th section of the Act of 1875 as amended by the Orders of 1879 and 1892 shall be read as if the words "seventy-six thousand pounds" had been inserted instead of the words "sixty-six thousand pounds" and the 75th section of the Act of 1875 as amended by the Orders of 1879 and 1892 shall be read as if the words "seventy-two thousand pounds" had been inserted instead of the words "fifty-seven thousand pounds."

Costs of Order.

3. Section 82 of the Act of 1875 shall be construed as if the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto were part of the costs for payment of which provision is made by that section.

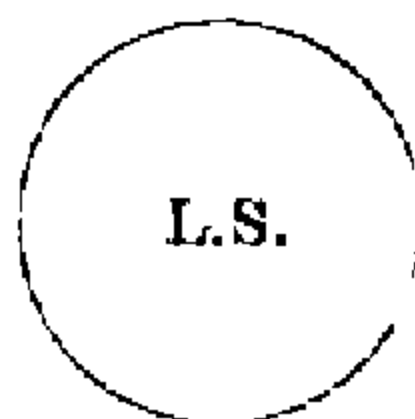
Priority of
mortgages.

4. All mortgages granted by the Commissioners for securing money borrowed under the provisions of the Act of 1875 and the Orders of 1879 and 1892 and subsisting at the time of the passing of the Act confirming this Order shall have priority over all mortgages granted by the Town Council under the provisions of the said sections of the Act of 1875 and of the said Act as amended by the Orders of 1879 and 1892 for securing money borrowed after the passing of the Act confirming this Order.

Sinking fund.

5. The Town Council shall from and after the passing of the Act confirming this Order set apart annually as a sinking fund for the repayment of the additional money authorised to be borrowed by this Order such a sum as will produce a fund equal to three per cent. per annum upon the sum or sums of money so to be borrowed and also to the annual interest of such borrowed sum or sums and which sum of three per cent. per annum the Town Council shall annually appropriate set apart and invest at the highest rate of interest which can be had for the same in the public funds or in any chartered or other bank or on heritable security as a sinking fund applicable and to be applied by the Town Council from time to time to the repayment of the moneys to be borrowed under this Order until the amount so to be borrowed shall be extinguished or the Town Council may agree with the lender so that the amounts of three per cent. shall annually be receivable by him in liquidation pro tanto of the principal debt Sections 96 and 97 of the Act of 1875 shall not apply to the additional money authorised to be borrowed by this Order.

Given under my hand and seal at Whitehall this fifth day of June
one thousand nine hundred and five.



LINLITHGOW.

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